BACKGROUND

In late 2001, as the United States focused on toppling the Taliban regime and fighting al Qaeda in Afghanistan, Pakistan's importance as an ally in the global war on terror increased. According to Defense, Pakistan's military operations and other contributions to Operation Enduring Freedom in Afghanistan quickly threatened to become unsustainable on its $2.5 billion defense budget. As a result, Defense requested supplemental funding from Congress to provide payments to Pakistan for logistical and military support in connection with Operation Enduring Freedom. In response, Congress passed the Defense Appropriations Act for Fiscal Year 2002, stipulating that the "Defense Emergency Response Fund" could be used by the Secretary of Defense to reimburse coalition partners for logistical and military support to U.S. military operations.[9] This funding became known as Coalition Support Funds.

To provide Defense with maximum flexibility, Congress passed the Defense Appropriations Act for Fiscal Year 2002, which granted the Secretary of Defense the authority to make CSF payments notwithstanding any other provision of law in such amounts as the Secretary may determine in his discretion, based on documentation determined by the Secretary to adequately account for the logistical and military support provided by partner nations.[10] Any such determination by the Secretary shall be final and conclusive. The act did, however, require Defense to provide a 15-day notification of upcoming CSF reimbursements. Congress continued to provide funding for Pakistan through Defense without requiring specific accountability controls until 2008.[11] Subsequent legislation required Defense to provide quarterly reports to the House and Senate Committees on Appropriations and the House and Senate Armed Services Committees on the use of funds made available for payments to Pakistan and other CSF recipients. Despite these revisions to the reporting requirements, Congress has consistently left decision-making on the suitability of documentation to the discretion of the Secretary of Defense.

Defense, on its own, has instituted guidance that goes beyond what is mandated in law.

According to Defense, CSF is critical to ensure Pakistan's continued support of U.S. efforts to combat terrorism. Defense officials stated that without CSF or a similar mechanism to reimburse Pakistan for support in Operation Enduring Freedom, Pakistan could not afford to deploy military forces along the Pakistan-Afghanistan border to support U.S. military operations in Afghanistan. Defense also indicates that 84 percent of all containerized cargo and approximately 40 percent of all fuel for U.S. and coalition forces operating in Afghanistan passes through Pakistan. According to Defense officials, CSF has been a major factor in Pakistan's ongoing cooperation in support of U.S. goals in Pakistan and Afghanistan.

Defense has used CSF to reimburse Pakistan for Operation Al Mizan, a major deployment of the Pakistan army in the North West Frontier Province and the Federally Administered Tribal Areas (FATA) that border Afghanistan that began in 2001 and has continued in various phases to this date.[12] Defense also states that CSF payments to Pakistan have played a key role in supporting U.S. national security goals in Pakistan to combat terrorists that threaten U.S. interests in America, Pakistan, Afghanistan, and Western Europe. The CSF reimbursements to Pakistan from October 2001 through June 2007 (the latest period of support reimbursed by Defense) are shown in figure 1.

Copyright © 2010. Nova Science Publishers, Incorporated. All rights reserved.

Combating Islamic Militancy and Terrorism in Pakistan's Border Region, Nova Science Publishers, Incorporated, 2010. ProQuest Ebook Central,